

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Colin Lodewick	Team: Squad #08	CCRB Case #: 202300366	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 01/02/2023 10:00 PM	Location of Incident: 48th Precinct stationhouse	18 Mo. SOL 7/2/2024	Precinct: 48		
Date/Time CV Reported Tue, 01/03/2023 2:41 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Sun, 01/15/2023 5:45 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Ibn Barthelemy	21937	962940	048 PCT
2. PO Amin Fontana	21446	941773	048 PCT
3. SGT Matthew Vantress	00434	946358	048 PCT
4. PO Cristian Medrano	19380	963159	048 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Kaseem Pennant	29437	965405	048 PCT
2. PO Md Ahad	01209	967407	048 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Amin Fontana	Abuse: Police Officer Amin Fontana did not process § 87(2)(b) complaint regarding officers.	A . Unable to Determine
B . PO Ibn Barthelemy	Abuse: Police Officer Ib'n Barthelemy did not process § 87(2)(b) complaint regarding officers.	B . Substantiated
C . PO Cristian Medrano	Abuse: Police Officer Cristian Medrano did not process § 87(2)(b) complaint regarding officers.	C . Substantiated
D . PO Ibn Barthelemy	Force: Police Officer Ib'n Barthelemy used physical force against § 87(2)(b)	D . Unfounded
E . PO Cristian Medrano	Force: Police Officer Cristian Medrano used physical force against § 87(2)(b)	E . Unfounded
F . PO Ibn Barthelemy	Abuse: Police Officer Ib'n Barthelemy refused to provide his name to § 87(2)(b)	F . Unable to Determine
G . PO Ibn Barthelemy	Abuse: Police Officer Ib'n Barthelemy refused to provide his shield number to § 87(2)(b)	G . Unable to Determine
H . PO Ibn Barthelemy	Abuse: Police Officer Ib'n Barthelemy improperly used his body-worn camera.	H . Within NYPD Guidelines
I . PO Cristian Medrano	Abuse: Police Officer Cristian Medrano improperly used his body-worn camera.	I . Within NYPD Guidelines
J . SGT Matthew Vantress	Abuse: Sergeant Matthew Vantress threatened to arrest § 87(2)(b)	J . Within NYPD Guidelines
K . SGT Matthew Vantress	Abuse: Sergeant Matthew Vantress did not process § 87(2)(b) complaint regarding officers.	K . Unfounded

Officer(s)	Allegation	Investigator Recommendation
L . SGT Matthew Vantress	Abuse: Sergeant Matthew Vantress refused to provide his name to § 87(2)(b)	L . Unfounded
M . SGT Matthew Vantress	Abuse: Sergeant Matthew Vantress refused to provide his shield number to § 87(2)(b)	M . Unfounded
N . SGT Matthew Vantress	Abuse: Sergeant Matthew Vantress improperly used his body-worn camera.	N . Miscellaneous - Subject Resigned

Case Summary

On January 17, 2023, the CCRB received this complaint from IAB, where § 87(2)(b) initially filed it via telephone.

On January 2, 2023, at approximately 10:00 PM, § 87(2)(b) approached the 48th Precinct stationhouse with his wife, § 87(2)(b) and daughter, § 87(2)(b) to obtain information about the recent arrest of his nephew, § 87(2)(b) which had occurred earlier in the night. § 87(2)(b) first approached Police Officer Amin Fontana of the 48th Precinct, who was working as stationhouse security and stood at the main entrance. § 87(2)(b) told PO Fontana that he wanted to speak with a sergeant and to file a complaint against the officers involved in his nephew's arrest. PO Fontana allegedly did not attempt to process § 87(2)(b) complaint (**Allegation A, Abuse of Authority: Unable to Determine**). § 87(2)(b) then entered the stationhouse, where he engaged with Police Officer Ib'n Barthelemy and Police Officer Cristian Medrano, both of the 48th Precinct. During their exchange, § 87(2)(b) again expressed that he wanted to file a complaint. PO Barthelemy and PO Medrano allegedly did not attempt to process § 87(2)(b) complaint (**Allegations B and C, Abuse of Authority: Substantiated**). Their exchange became hostile, prompting PO Barthelemy and PO Medrano to remove § 87(2)(b) from the stationhouse (**Allegations D and E, Force: Unfounded**). While the officers were removing § 87(2)(b) from the stationhouse, § 87(2)(b) asked PO Barthelemy for his name and shield number. PO Barthelemy allegedly did not provide his name or shield number to § 87(2)(b) (**Allegations F and G: Abuse of Authority, Unable to Determine**). PO Barthelemy and PO Medrano did not have their body-worn cameras activated while removing § 87(2)(b) from the stationhouse (**Allegations H and I: Abuse of Authority, Within NYPD Guidelines**). Sergeant Matthew Vantress, who had been working as a Desk Officer, then approached § 87(2)(b) at the front of the stationhouse. Sgt. Vantress allegedly threatened to arrest § 87(2)(b) for trespassing if he did not leave the stationhouse (**Allegation K: Abuse of Authority, Within NYPD Guidelines**). Sgt. Vantress allegedly did not attempt to process § 87(2)(b) complaint after § 87(2)(b) stated that he was at the stationhouse to file a complaint (**Allegation J: Abuse of Authority, Unable to Determine**). § 87(2)(b) asked for Sgt. Vantress's name and shield number, and he allegedly refused to provide his name and shield number (**Allegations L and M: Abuse of Authority, Unfounded**). Sgt. Vantress did not wear a BWC during the incident (**Allegation N: Abuse of Authority, Miscellaneous – Subject Resigned**).

§ 87(2)(b) was not arrested or issued a summons as a result of this incident.

The investigation obtained surveillance footage from the 48th Precinct stationhouse that pertains to this incident. The footage is linked in IAs #160 and #161 and summarized in IA #53 (**Board Review 7-9**). The investigation also obtained BWC footage for PO Fontana and Police Officer Kaseem Pennant of the 48th Precinct, who also observed the incident. The footage is linked in IAs #162 and #163 and summarized in IA #58 (**Board Review 10-12**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Amin Fontana did not process § 87(2)(b) complaint regarding officers.

It is undisputed that on January 2, 2023, at approximately 10:00 PM, § 87(2)(b) went to the 48th Precinct stationhouse with § 87(2)(b) and § 87(2)(b) and engaged with PO Fontana, PO Barthelemy, PO Medrano, and Sgt. Vantress.

On January 24, 2023, § 87(2)(b) testified to the CCRB that on January 2, 2023, at approximately 10:00 PM, he approached the 48th Precinct stationhouse with § 87(2)(b) and § 87(2)(b) (**Board Review 01**). § 87(2)(b) spoke with PO Fontana, who stood outside of the front door. § 87(2)(b) told PO Fontana that he wanted to file a “harassment complaint” against the officers involved in the arrest of his nephew and to speak with a sergeant. § 87(2)(b) then entered the stationhouse with PO Fontana, who told him that he was going to retrieve the officers involved in his nephew’s arrest. PO Fontana did not attempt to take down § 87(2)(b) complaint or ask for further information about it. Later, after he had been removed from the stationhouse, § 87(2)(b) again told PO Fontana that he still planned to file a complaint. PO Fontana did not attempt to process § 87(2)(b) complaint at that point, either.

On February 21, 2023, § 87(2)(b) testified to the CCRB that on January 2, 2023, she followed § 87(2)(b) as he approached PO Fontana where he stood in the vestibule of the 48th Precinct stationhouse (**Board Review 02**). § 87(2)(b) told PO Fontana that he was § 87(2)(b) uncle and that he wanted to speak to the officer who arrested him. PO Fontana then walked into the stationhouse to retrieve PO Barthelemy and PO Medrano. § 87(2)(b) did not express to any officer that he wanted to file a complaint until officers were actively removing him from the stationhouse. § 87(2)(b) told PO Fontana that he wanted to file a complaint against him because he touched him while escorting him from the stationhouse. § 87(2)(b) then told the officers present during the incident that he was planning to file a complaint against all of them. No officer attempted to take down a complaint from § 87(2)(b) at any point during the incident.

The investigation was unable to reach § 87(2)(b) for a statement after multiple contact attempts.

On April 6, 2023, PO Fontana testified to the CCRB that on January 2, 2023, § 87(2)(b) approached him where he stood at the front of the 48th Precinct stationhouse while he worked as security (**Board Review 03**). § 87(2)(b) told PO Fontana that he was at the stationhouse because his nephew had been arrested. § 87(2)(b) did not make any specific requests of PO Fontana when he first approached the stationhouse. § 87(2)(b) then walked into the stationhouse and began to “cause a scene” by yelling and cursing. § 87(2)(b) stated to no one in particular that he wanted to file a complaint against the officer who arrested § 87(2)(b). § 87(2)(b) did not at any point during the incident provide any concrete information about what happened with § 87(2)(b) or why he wanted to file a complaint. PO Fontana denied that § 87(2)(b) ever asked him specifically to file a complaint.

Stationhouse footage from the vestibule of the 48th Precinct stationhouse captures § 87(2)(b) without audio, at the 1h04m37s timestamp entering the building at approximately 10:04 PM on January 2, 2023, and speaking with PO Fontana (**Board Review 07**). Stationhouse footage from the civilian waiting area then captures § 87(2)(b) following PO Fontana further into the stationhouse at the 1h04m55s timestamp. § 87(2)(b) then stands in a doorway while PO Fontana leaves to retrieve PO Barthelemy and PO Medrano from an office (**Board Review 08**). § 87(2)(b) does not engage with any officer while waiting for PO Fontana to return.

PO Fontana’s BWC footage does not capture his initial conversation with § 87(2)(b). The footage does, however, capture his final interaction with § 87(2)(b) from the 7m45s timestamp to the 8m45s timestamp (**Board Review 10**). § 87(2)(b) does not tell PO Fontana that he still plans to file a complaint during that last interaction.

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **Unable to Determine**.

Allegation (B) Abuse of Authority: Police Officer Ib'n Barthelemy did not process § 87(2)(b) complaint regarding officers.

Allegation (C) Abuse of Authority: Police Officer Cristian Medrano did not process § 87(2)(b) complaint regarding officers.

§ 87(2)(b) testified to the CCRB that after he first spoke with PO Fontana at the front of the 48th Precinct stationhouse, PO Fontana retrieved PO Barthelemy and PO Medrano (**Board Review 01**). § 87(2)(b) initially had told PO Fontana that he did not want to speak with PO Barthelemy and PO Medrano because he planned to file a complaint against them. When PO Barthelemy and PO Medrano approached § 87(2)(b) at the front of the stationhouse, § 87(2)(b) told PO Barthelemy that he wanted to file a complaint. PO Barthelemy told § 87(2)(b) that he needed to “go online” to file a complaint but did not tell § 87(2)(b) where online he could file a complaint and did not provide him with additional resources.

PO Fontana’s BWC footage captures § 87(2)(b) asking to file a complaint at the 1m27s timestamp of the footage (**Board Review 10**). § 87(2)(b) directs his statement at PO Medrano and PO Barthelemy while they are actively removing him from the stationhouse. Neither officer attempts to help § 87(2)(b) file his complaint.

PO Barthelemy testified to the CCRB that after he approached § 87(2)(b) at the front of the stationhouse, he and § 87(2)(b) began to engage in a verbal dispute (**Board Review 04**). During that dispute, § 87(2)(b) stated that he wanted to “make a report.” PO Barthelemy attempted to give § 87(2)(b) information about filing a complaint, but § 87(2)(b) did not listen to what PO Barthelemy told him. PO Barthelemy stated during his CCRB interview that when civilians want to file a complaint, it is his responsibility to provide information and then bring the civilian to a supervisor, who would then handle paperwork related to the complaint.

During his CCRB interview, PO Barthelemy was shown the portion of PO Fontana’s BWC footage that captures § 87(2)(b) asking to file a complaint while being removed from the stationhouse. PO Barthelemy stated that he did not attempt to take down § 87(2)(b) complaint during the instance captured in the footage because he had already attempted to give § 87(2)(b) information about filing a complaint during a portion of the incident not captured with audio. PO Barthelemy stated that civilians can file complaints when they are being removed from the stationhouse. PO Barthelemy stated that a civilian who is being removed who wants to file a complaint can return to the stationhouse to file the complaint when they are “ok,” or else file the complaint via telephone.

On April 20, 2023, Police Officer Cristian Medrano testified to the CCRB that on January 2, 2023, while at the 48th Precinct stationhouse, § 87(2)(b) at some point asked to file a complaint while he was present (**Board Review 05**). PO Medrano did not remember exactly when § 87(2)(b) asked to file a complaint or against whom he wanted to file a complaint, though he believed that § 87(2)(b) may have wanted to file a complaint against the officers, himself included, who had arrested § 87(2)(b). During his CCRB interview, PO Medrano stated that the policy for when a civilian wants to file a complaint at the stationhouse is for stationhouse security to provide the civilian with a phone number to call. PO Medrano did not know if civilians can file complaints at the stationhouse. PO Medrano did not know if he as a police officer is able to take down a civilian’s complaint. PO Medrano stated that he has never taken down a civilian’s complaint. PO Medrano typically alerts an on-scene sergeant or supervisor when a civilian wants to file a complaint.

During his CCRB interview, PO Medrano was shown the portion of PO Fontana's BWC footage that captures § 87(2)(b) asking him and PO Barthelemy to file a complaint. PO Medrano stated that because he was processing an arrest when § 87(2)(b) arrived at the stationhouse, he was not responsible for taking down § 87(2)(b) complaint. PO Medrano did not attempt to alert a supervisor about § 87(2)(b) wanting to take down a complaint because Sgt. Vantress was already on the scene. PO Medrano stated that civilians are entitled to file a complaint even when they are being removed from the stationhouse.

NYPD Patrol Guide Procedure No. 207-28 establishes that civilians are empowered to file complaints against uniformed members of the service at any patrol precinct, police service area, transit district, traffic unit, Internal Affairs Bureau, or any other NYPD office (**Board Review 13**). The procedure also establishes that the first steps for processing a civilian complaint in person should be to interview the civilian and provide them with a copy of a Civilian Complaint Report. In cases where a civilian does not wish to immediately make a complaint, the member of service should still provide the civilian with a copy of a Civilian Complaint Report and advise the civilian that the complaint can be delivered in person, over the phone, or via mail. The member of service should also provide the civilian with the number for the CCRB's intake unit.

§ 87(2)(b) PO Barthelemy, and PO Medrano's testimonies all differ slightly with regards to when and how § 87(2)(b) asked to file a complaint once they began to engage with each other at the 48th Precinct stationhouse on January 2, 2023. § 87(2)(g)

Therefore, it is recommended that **Allegations B and C** be closed as **Substantiated**.

Allegation (D) Force: Police Officer Ib'n Barthelemy used physical force against § 87(2)(b)

Allegation (E) Force: Police Officer Cristian Medrano used physical force against § 87(2)(b)

§ 87(2)(b) testified to the CCRB that on January 2, 2023, after PO Barthelemy approached § 87(2)(b) at the front of the 28th Precinct stationhouse, PO Barthelemy asked to speak with § 87(2)(b) outside (**Board Review 01**). § 87(2)(b) and PO Barthelemy then engaged in a verbal dispute that resulted in PO Barthelemy and PO Medrano pushing him out of the stationhouse. During their physical altercation, PO Barthelemy grabbed § 87(2)(b) left arm above his elbow with his right hand and put his left hand on § 87(2)(b) chest. PO Medrano grabbed § 87(2)(b) right arm. PO Barthelemy and PO Medrano then backed § 87(2)(b) up approximately five feet, with § 87(2)(b) walking backwards. § 87(2)(b) almost fell down several steps in the stationhouse vestibule while PO Barthelemy and PO Medrano pushed him.

Stationhouse footage from the 48th Precinct civilian waiting area captures the entirety of § 87(2)(b) removal from the stationhouse (**Board Review 08**). At the 1h07m00s timestamp of the footage, PO Barthelemy and PO Medrano first approach § 87(2)(b) where he stands in the civilian waiting area. PO Barthelemy then engages in a discussion with § 87(2)(b) while PO Medrano stands close by. At the 1h07m57s timestamp of the footage, PO Barthelemy grabs § 87(2)(b)

upper right arm with his right hand for approximately two seconds, prompting § 87(2)(b) to turn around and exit the civilian waiting area. Officers do not make any additional contact with § 87(2)(b) during the incident.

§ 87(2)(g) stationhouse footage captures the entirety of the incident from multiple angles and § 87(2)(g) the footage does not capture any officer making physical contact with § 87(2)(b) beyond PO Barthelemy grabbing his arm for approximately two seconds. § 87(2)(g) Therefore, it is recommended that **Allegations D and E** be closed as **Unfounded**.

Allegation (F) Abuse of Authority: Police Officer Ib'n Barthelemy refused to provide his name to § 87(2)(b)

Allegation (G) Abuse of Authority: Police Officer Ib'n Barthelemy refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) testified to the CCRB that after PO Barthelemy and PO Medrano removed § 87(2)(b) from the civilian waiting area to the front of the 48th Precinct stationhouse, she had a brief conversation with PO Barthelemy, inserting herself between him and § 87(2)(b) (**Board Review 02**). During that conversation, § 87(2)(b) asked PO Barthelemy in a calm tone of voice why § 87(2)(b) had been arrested. PO Barthelemy then told § 87(2)(b) to “shut up,” and that he did not need to talk to her. § 87(2)(b) asked for PO Barthelemy’s name and badge number. PO Barthelemy refused to give § 87(2)(b) his name and badge number.

§ 87(2)(b) testified to the CCRB that § 87(2)(b) did not ask any officer for his name and badge number during the incident (**Board Review 01**).

PO Fontana’s BWC captures the incident with audio beginning with PO Barthelemy escorting § 87(2)(b) from the civilian waiting room (**Board Review 10**). As officers were primarily focused on § 87(2)(b) during the incident, § 87(2)(b) is only captured in several portions of footage, at times directly addressing officers with questions about § 87(2)(b). The footage does not capture § 87(2)(b) asking officers for their names and badge numbers.

PO Pennant’s BWC captures a portion of § 87(2)(b) argument with officers (**Board Review 11**). § 87(2)(b) is captured in several portions of footage, at times directly addressing officers with questions about § 87(2)(b). The footage does not capture § 87(2)(b) asking officers for their names and badge numbers.

PO Barthelemy testified to the CCRB that he did not speak with § 87(2)(b) at any point during the incident (**Board Review 04**). PO Barthelemy denied refusing to provide his name and shield to § 87(2)(b) during the incident.

§ 87(2)(b) and PO Barthelemy’s testimonies are not consistent regarding conversation that occurred between them after PO Barthelemy escorted § 87(2)(b) out of the civilian waiting area at the 48th Precinct stationhouse. § 87(2)(g) BWC footage does not clearly capture every interaction that § 87(2)(b) had with officers, including the very beginning of § 87(2)(b) conversation with PO Barthelemy § 87(2)(g)

§ 87(2)(b) Therefore, it is recommended that **Allegations F and G** be closed as **Unable to Determine**.

Allegation (H) Abuse of Authority: Police Officer Ib'n Barthelemy improperly used his body-worn camera.

Allegation (I) Abuse of Authority: Police Officer Cristian Medrano improperly used his body-worn camera.

A request for PO Barthelemy and PO Medrano's BWC footage was returned negative.

PO Barthelemy testified to the CCRB that on January 2, 2023, he docked his BWC at the 48th Precinct stationhouse to upload footage from the arrest of § 87(2)(b) which had occurred at approximately 7:17 PM per § 87(2)(b) arrest report (**Board Review 04**). As a result, PO Barthelemy was not wearing a BWC when § 87(2)(b) arrived at the stationhouse at approximately 10:00 PM.

PO Medrano testified to the CCRB that on January 2, 2023, he also docked his BWC at the 48th Precinct stationhouse to upload footage from the arrest of § 87(2)(b) (**Board Review 05**). As a result, PO Medrano was not wearing a BWC when § 87(2)(b) arrived at the stationhouse at approximately 10:00 PM.

NYPD Patrol Guide Procedure No. 212-123 establishes that uniformed members of service are to insert their BWCs into a docking station at the stationhouse to upload video and recharge the battery at the completion of every tour (**Board Review 14**).

§ 87(2)(g) PO Barthelemy and PO Medrano began their tours together on January 2, 2023 at 2:00 PM and arrested § 87(2)(b) together at approximately 9:17 PM, returning to the stationhouse to process his arrest and to presumably complete their tours while docking their BWCs. § 87(2)(g)

§ 87(2)(g) Therefore, it is recommended that **Allegations H and I** be closed as **Within NYPD Guidelines**.

Allegation (J) Abuse of Authority: Sergeant Matthew Vantress threatened to arrest § 87(2)(b).

§ 87(2)(b) testified to the CCRB that Sergeant Matthew Vantress arrived on the scene after PO Barthelemy and PO Medrano pushed him to the front entrance of the 48th Precinct stationhouse (**Board Review 01**). § 87(2)(b) asked Sgt. Vantress if he was "alright" with the other officers putting their hands on him. Sgt. Vantress told § 87(2)(b) to leave and that if he came back, he would "lock him up." Sgt. Vantress told § 87(2)(b) that he could arrest him for trespassing but did not tell him why he needed to leave the stationhouse.

On April 19, 2023, Sgt. Vantress testified to the CCRB that on January 2, 2023, he was working as the Desk Officer at the 48th Precinct stationhouse when § 87(2)(b) arrived and began to have a dispute involving PO Barthelemy, PO Medrano, and PO Fontana (**Board Review 06**). Sgt. Vantress involved himself in the incident when he heard § 87(2)(b) threaten to contact an attorney after PO Barthelemy escorted him out of the civilian waiting area to the front of the stationhouse. Sgt. Vantress told § 87(2)(b) that if he did not leave the stationhouse he would be arrested for criminal trespass.

PO Fontana's BWC footage captures Sgt. Vantress's entire involvement in the incident (**Board Review 10**). At the 4m10s timestamp of the footage, when § 87(2)(b) is standing on the stationhouse front steps arguing with Sgt. Vantress, Sgt. Vantress tells him: "Either leave or you're

going to get arrested for trespassing.” § 87(2)(b) and Sgt. Vantress continue to engage in a back-and-forth argument for several moments before § 87(2)(b) walks away.

NY CLS Penal § 140.00 establishes that a person who enters or remains in or upon premises which are open to the public does so with license and privilege until an authorized person communicates to them that they must leave (**Board Review 15**).

Per *People v. Reape*, 22 Misc.3d 615 (Kings County Crim. Ct. 2008), a case in which an individual was yelling and screaming and refusing to leave a police precinct after being told that a particular police detective he sought did not work there, the Kings County Criminal Court found that such conduct interfered with the precinct’s normal activity. Thus, an officer may direct such an individual to leave the stationhouse and, if they refuse to do so, that individual is trespassing which establishes that a police officer’s order to a civilian to leave a Precinct stationhouse suffices to revoke the civilian’s license to lawfully remain there (**Board Review 16**).

In *People v. Hedemann*, 107 Misc.2d 241 (App. Term, 1st Dept. 1981), the court found that even where municipal or state property is generally open to the public, the license to enter and use the space may be regulated so as to prevent interference with the ordinary use of property by other members of the public with an equal right of access to it (**Board Review 20**).

Prior to Sgt. Vantress involving himself in the incident, PO Barthelemy had already told § 87(2)(b) multiple times that he needed to leave the stationhouse without § 87(2)(b) complying, as PO Fontana’s BWC footage confirms. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Therefore, it is recommended that **Allegation J** be closed as **Within NYPD Guidelines**.

Allegation (K) Abuse of Authority: Sergeant Matthew Vantress did not process § 87(2)(b) complaint regarding officers.

Allegation (L) Abuse of Authority: Sergeant Matthew Vantress refused to provide his name to § 87(2)(b)

Allegation (M) Abuse of Authority: Sergeant Matthew Vantress refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) testified to the CCRB that he had an argument with Sgt. Vantress after PO Barthelemy and PO Medrano removed him to the front of the 48th Precinct stationhouse (**Board Review 01**). During that argument, § 87(2)(b) told Sgt. Vantress that he wanted to file a complaint. Sgt. Vantress told § 87(2)(b) that he needed to “go online” to file a complaint. Sgt. Vantress did not take down § 87(2)(b) complaint himself. Sgt. Vantress did not ask § 87(2)(b) any questions about the nature of his complaint. Sgt. Vantress did not have § 87(2)(b) write down details about his complaint. Sgt. Vantress did not present § 87(2)(b) with any other options to file his complaint. § 87(2)(b) then asked for Sgt. Vantress’s name and shield number along with the names and badge numbers of the other officers present. Sgt. Vantress did not acknowledge § 87(2)(b) request for his name and shield number.

Sgt. Vantress testified to the CCRB that he did not hear § 87(2)(b) ask any officer to file a complaint during the incident (**Board Review 06**). Sgt. Vantress further testified § 87(2)(b) did not ask for Sgt. Vantress’s name or shield number. Sgt. Vantress denied refusing to provide his name and shield number to § 87(2)(b)

PO Fontana's BWC footage captures the entirety of Sgt. Vantress's involvement in the incident (**Board Review 10**). At no point during Sgt. Vantress's conversation with § 87(2)(b) does § 87(2)(b) tell Sgt. Vantress that he wants to file a complaint. § 87(2)(b) does not ask for Sgt. Vantress's name and shield number during their conversation.

§ 87(2)(g) PO Fontana's BWC footage, which captures the entirety of § 87(2)(b) conversation with Sgt. Vantress, does not capture § 87(2)(b) telling Sgt. Vantress that he wanted to file a complaint and does not capture § 87(2)(b) asking for Sgt. Vantress's name or shield number. § 87(2)(g)

Therefore, it is recommended that **Allegations K, L and M** be closed as **Unfounded**.

Allegation (N) Abuse of Authority: Sergeant Matthew Vantress improperly used his body-worn camera.

A request for Sgt. Vantress's BWC footage was returned negative.

Sgt. Vantress testified to the CCRB that he did not wear a BWC during the incident because he was working in an administrative capacity on January 2, 2023 (**Board Review 06**). Sgt. Vantress further testified that has never worn a BWC as a Desk Officer, a policy that he stated is not specific to the 48th Precinct.

NYPD Patrol Guide Procedure No. 212-123 establishes that uniformed members of the service performing duty as desk officers, telephone switchboard operators and stationhouse security are required to wear their BWC while performing duty (**Board Review 14**).

§ 87(2)(g) Therefore, it is recommended that **Allegation N** be closed as **Miscellaneous- Subject Resigned**.

Civilian and Officer CCRB Histories

- § 87(2)(b) This is the first CCRB complaint to which § 87(2)(b) has been a party.
- PO Fontana has been a member of service for 16 years and this is the first CCRB complaint to which he has been a subject.
- Sgt. Vantress has been a member of service for 15 years and has been a subject in five additional CCRB complaints and ten allegations, none of which were substantiated. § 87(2)(g)
- PO Medrano has been a member of service for six years and has been a subject in three additional CCRB complaints and 15 allegations, ten of which were not substantiated and five of

which are still being investigated. § 87(2)(g)

- PO Barthelemy has been a member of service for six years and has been a subject in two additional CCRB complaints and two allegations, two of which were not substantiated and one of which is still being investigated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of February 16, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (**Board Review 18**).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad: 8

Investigator:	Colin Lodewick Signature	Inv. Colin Lodewick Print Title & Name	05/22/2023 Date
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Squad Leader:	Ethan De Angelo Signature	IM Ethan De Angelo Print Title & Name	05/23/2023 Date
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Reviewer:	Signature	Print Title & Name	Date
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